

CERTIFIED DATA
PROTECTION OFFICER (CDPO)

PORTFOLIO

GDPR FINE ANALYSIS AND LESSONS FOR INDIAN ENFORCEMENT

Learning from Significant GDPR
Enforcement Actions and Implications
for India's **DPDP Act, 2023**



PRIVACY

Protecting
Personal Data



ACCOUNTABILITY

Demonstrating
Responsibility



COMPLIANCE

Aligning with
Legal Obligations



GLOBAL PERSPECTIVE

Understanding
Enforcement Trends



NAME

Nikita Michael



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MODULE

Global Regulatory Landscape



Understanding Global Enforcement.
Protecting Rights.
Building Trust.

Introduction

The General Data Protection Regulation (GDPR) is the world's most influential data protection law, and studying its enforcement record matters far beyond the European Union. From my analysis, enforcement decisions are where the abstract text of a regulation becomes concrete: they show how supervisory authorities actually interpret concepts like “lawful basis,” “transparency,” and “privacy by design” when real companies process real people’s data. For a student preparing to become a Data Protection Officer in India, this is invaluable, because India’s Digital Personal Data Protection Act, 2023 (DPDP Act) borrows several structural ideas from the GDPR, a consent-driven framework, an independent regulator, and special protection for children’s data while diverging sharply in other respects, such as its narrower set of lawful grounds for processing and its comparatively open approach to cross-border data transfers.

As a future CDPO, I think it is important to understand not just what the DPDP Act says, but what kind of conduct a GDPR-style regulator treats as serious, since India’s Data Protection Board of India (DPBI) will eventually have to make similar judgment calls. This report examines three landmark Irish Data Protection Commission (DPC) decisions against Meta-owned platforms and LinkedIn, and asks what each case might suggest about the future of enforcement in India.

Case 1: Meta Platforms Ireland (2023) — Cross-Border Data Transfers

1. Background

On 12 May 2023, the DPC adopted a final decision against Meta Platforms Ireland concerning Facebook’s transfers of EU/EEA users’ personal data to the United States (Faegre Drinker, 2023). The decision was announced publicly on 22 May 2023 and imposed a €1.2 billion fine, the largest GDPR fine to date (Hunton Andrews Kurth, 2023). The case traces back to Maximillian Schrems’s long-running challenge to EU–US data flows, which had already produced two landmark rulings by the Court of Justice of the European Union (CJEU): the 2015 invalidation of the Safe Harbour framework (“Schrems I”) and the 2020 invalidation of the Privacy Shield framework (“Schrems II”) (BDO, 2026).

2. What Went Wrong

Following Schrems II, Meta continued transferring Facebook users’ data to the US relying on the European Commission’s Standard Contractual Clauses (SCCs) together with supplementary measures. The DPC found that these measures did not adequately address the risk that US intelligence agencies could access EU users’ data under US surveillance law, meaning the SCCs alone could not legitimise the transfers (Faegre Drinker, 2023).

3. GDPR Articles Violated

Article	Requirement	Why It Was Violated
Article 46(1)	Transfers to third countries require appropriate safeguards ensuring an essentially equivalent level of protection	Meta’s SCCs plus supplementary measures were found insufficient to address the surveillance risks identified in Schrems II (Faegre Drinker, 2023)

Article	Requirement	Why It Was Violated
Chapter V (general transfer regime)	Processing/storage of transferred data must comply with GDPR once outside the EEA	Meta continued unlawful processing and storage of EEA user data in the US (Hunton Andrews Kurth, 2023)

4. Regulatory Decision

Supervisory authority: Irish Data Protection Commission, acting on a binding Article 65 decision of the European Data Protection Board (EDPB) adopted 13 April 2023

Fine: €1.2 billion

Date: Decision adopted 12 May 2023; announced 22 May 2023

Corrective measures: Meta ordered to suspend future EU–US transfers within five months and to cease unlawful processing/storage of already-transferred data within six months (Hunton Andrews Kurth, 2023)

5. Why the Regulator Imposed the Fine

The EDPB’s binding decision described the infringement as “very serious” because the transfers were systematic, repetitive, and continuous, and because Facebook’s enormous EU user base meant the volume of data involved was massive (Society for Computers & Law, 2023). In simple terms, this was not a one-off mistake but a structural business practice that persisted for years after the legal basis for it had been invalidated by Europe’s highest court. The size of the fine reflects both the scale of the processing and the fact that Meta had been on clear notice, since 2020, that its transfer mechanism was legally unsound.

6. My Analysis

What strikes me most about this case is that it was not really about a data breach or a technical security failure; it was about a company continuing “business as usual” after the legal ground had shifted beneath it. This teaches an important lesson about accountability: compliance is not a one-time exercise completed when a policy is drafted, but an ongoing obligation to track how binding legal interpretations evolve. I was also surprised by how long the case took over a decade of litigation from the original complaint to the final fine which suggests that even a well-resourced regulator can be slowed by cooperation mechanisms among 27 member states. As a future CDPO, I see this as an important precedent because it establishes that contractual paperwork (like SCCs) is not a substitute for a genuine, documented risk assessment of the destination country’s laws.

7. Lessons for Organisations

- Cross-border transfer mechanisms must be reassessed whenever the underlying legal landscape changes, not left on autopilot
- Documentation of a Transfer Impact Assessment is essential evidence of accountability
- Reliance on standard contract templates alone is not sufficient without supplementary technical and organisational measures
- Regulatory cooperation mechanisms mean that a single national decision can have EU-wide, binding effect

8. Comparison with India’s DPDP Act

The DPDP Act takes a notably different approach to cross-border transfers. Rather than requiring a case-by-case adequacy-style assessment as the GDPR does, Section 16 permits transfers to any country by default, unless the Central Government specifically restricts transfers to that country by notification (PRS India, 2026). This is a much lighter-touch, “blacklist” style regime compared to the GDPR’s “safeguards-by-default” approach. In principle, this means an equivalent Meta-style fact pattern is less likely to result in a violation of the transfer provisions under the DPDP Act as currently structured, since India has not (as of this writing) restricted transfers to the US.

9. Possible Implications for India’s Data Protection Board

Although the DPDP Act differs substantially from the GDPR on this point, this case still suggests something important: the DPBI may eventually place greater emphasis on the government’s power to notify restricted countries, particularly if concerns arise about foreign government access to Indian citizens’ data. It is possible that future rules or notifications under Section 16 could begin to import GDPR-like adequacy thinking, especially for sensitive or government-related data categories, though this remains speculative at this stage.

Case 2: LinkedIn Ireland (2024) — Targeted Advertising, Lawful Basis, and Transparency

1. Background

On 24 October 2024, the DPC announced a €310 million fine against LinkedIn Ireland Unlimited Company, concluding a six-year inquiry that began in August 2018 following a complaint to the French data protection authority by the non-profit La Quadrature du Net (Irish DPC, 2024; Viktoria Compliance, 2026). The inquiry examined LinkedIn’s processing of member data — both data provided directly by users and data obtained from third parties — for behavioural analysis and targeted advertising.

2. What Went Wrong

The DPC found that LinkedIn failed to establish a valid lawful basis for any of the grounds it relied upon. For third-party data used in behavioural analysis and targeted advertising, LinkedIn relied on user consent that the DPC found was not “freely given, sufficiently informed or specific, or unambiguous” (Irish Times, 2024). For first-party data, LinkedIn relied on legitimate interests and contractual necessity, both of which the DPC found did not meet the applicable thresholds (Goodwin, 2024). The DPC also found that LinkedIn had not provided users with sufficiently clear information about this processing, breaching its transparency obligations.

3. GDPR Articles Violated

Article	Requirement	Why It Was Violated
Article 6(1)	Processing must rest on a valid lawful basis (e.g., consent, legitimate interests, contractual necessity)	LinkedIn failed to satisfy the conditions for consent, legitimate interests, or contractual necessity (Hunton Andrews Kurth, 2024)

Article	Requirement	Why It Was Violated
Article 5(1)(a)	Processing must be lawful, fair, and transparent	The processing breached both the lawfulness and fairness sub-principles (Hunton Andrews Kurth, 2024)
Articles 13 and 14	Data subjects must be given specified information about processing	LinkedIn breached the rules on the provision of information to users (Hunton Andrews Kurth, 2024)

4. Regulatory Decision

Supervisory authority: Irish Data Protection Commission (lead authority, as LinkedIn’s EU establishment is in Dublin)

Fine: €310 million (three separate administrative fines totalling this amount)

Date: Notified to LinkedIn 22 October 2024; announced 24 October 2024

Corrective measures: A reprimand and an order requiring LinkedIn to bring its processing into compliance (Irish DPC, 2024)

5. Why the Regulator Imposed the Fine

DPC Commissioner Dr Des Hogan stated that none of the three requirements of lawfulness, fairness, or transparency was met, and that there were “serious deficiencies” in some areas (RTÉ, 2024). The reasoning demonstrates that a company cannot simply pick whichever Article 6(1) basis is most convenient after the fact; each basis carries its own specific conditions, and a company must be able to show it actually satisfied those conditions at the time of processing.

6. My Analysis

This case is significant to me because it shows how an advertising-funded business model can come into direct tension with GDPR’s insistence on a genuine, demonstrable lawful basis. It appears that LinkedIn attempted to rely on multiple legal bases as a fallback strategy, and the DPC’s decision rejected each one individually rather than accepting the strongest of the three. What surprised me was how long-running the case was six years from initial complaint to final decision which highlights that GDPR enforcement, particularly through the one-stop-shop mechanism, can be extremely slow even when the underlying facts are not especially complex. In my view, this is an important precedent for accountability because it confirms that “consent fatigue” style dark patterns and vague legitimate-interest justifications will not survive close regulatory scrutiny.

7. Lessons for Organisations

- Each lawful basis under Article 6(1) has distinct legal conditions that must be independently satisfied and documented
- Consent for advertising purposes must be specific and genuinely optional, not bundled into a general sign-up flow
- Legitimate interest assessments (balancing tests) must be conducted and recorded, not asserted after the fact

- Transparency notices must clearly describe behavioural analysis and advertising uses in plain language

8. Comparison with India's DPDP Act

The DPDP Act simplifies this area considerably compared to the GDPR. Rather than offering six alternative lawful bases, the DPDP Act is fundamentally consent-centric, supplemented by a defined list of “legitimate uses” that operate more narrowly than the GDPR’s broad “legitimate interests” ground (Atlas Systems, 2026). This narrower structure arguably reduces the risk of the kind of basis-shopping the DPC found problematic in LinkedIn’s case, since Indian data fiduciaries have fewer alternative bases to fall back on if consent fails.

9. Possible Implications for India's Data Protection Board

The Board may adopt a similarly strict approach to what counts as valid consent, particularly given that the DPDP Act’s consent requirements are explicitly modelled on informed, specific, and unambiguous agreement. This suggests Indian regulators could place significant emphasis on advertising-driven platforms’ consent flows once enforcement activity begins in earnest, especially where “legitimate use” is invoked in place of consent for advertising purposes.

Case 3: Instagram / Meta Platforms Ireland (2022) — Children’s Privacy and Privacy by Default

1. Background

On 2 September 2022, the DPC concluded a two-year, own-initiative inquiry into Meta Platforms Ireland Limited’s handling of child users’ data on Instagram, imposing a fine of €405 million — at the time the second-largest GDPR fine ever issued (Clifford Chance, 2022). The inquiry, opened in September 2020, was prompted partly by a complaint from US data scientist David Stier and partly by the DPC’s own review of Instagram’s registration process (Irish DPC, 2022).

2. What Went Wrong

The inquiry found two central problems: first, Instagram’s “business account” feature allowed children aged 13–17 to operate accounts that publicly disclosed their phone numbers and/or email addresses; second, personal Instagram accounts belonging to children were set to public by default unless the child affirmatively changed the setting (Irish DPC, 2022).

3. GDPR Articles Violated

Article	Requirement	Why It Was Violated
Article 6(1)	A valid lawful basis is required for all processing	The DPC imposed a specific €20 million component of the fine for this infringement (Irish DPC, 2022)
Article 5(1)(c) / Article 25	Data minimisation and privacy by design and by default	Public-by-default settings for children’s accounts and public disclosure of contact details went beyond what was necessary (Technology Law Dispatch, 2022)

Article	Requirement	Why It Was Violated
Recital 38 / children's data provisions	Children merit specific protection because they may be less aware of risks	The business account feature was made available to users known to be minors without adequate safeguards (Technology Law Dispatch, 2022)

4. Regulatory Decision

Supervisory authority: Irish Data Protection Commission, following a binding EDPB dispute-resolution decision of 28 July 2022

Fine: €405 million

Date: Decision adopted early September 2022; announced 15 September 2022

Corrective measures: A reprimand and an order requiring Meta to bring its processing into compliance within three months (EDPB, 2022; Clifford Chance, 2022)

5. Why the Regulator Imposed the Fine

EDPB Chair Andrea Jelinek called the decision “historic,” reflecting how seriously European regulators treat children’s data as a category deserving heightened protection (EDPB, 2022). The reasoning centres on the idea that default settings are not a neutral design choice; a public-by-default setting effectively shifts the burden onto a child to actively seek out privacy, rather than the platform building privacy in from the start, which directly conflicts with the privacy-by-default principle.

6. My Analysis

From my analysis, this case is the clearest illustration among the three of how “privacy by design and by default” is treated as a binding legal obligation rather than aspirational language. It also demonstrates that regulators will scrutinise a feature’s design even where no external data breach occurred — the harm here was structural exposure, not hacking. What I find most instructive is that the business account feature was ostensibly intended for legitimate commercial purposes, yet the DPC still found it unacceptable when applied to accounts known to belong to minors. As a future CDPO, this teaches me that product design decisions default settings, account types, visibility toggles are themselves compliance decisions, not just product or engineering choices.

7. Lessons for Organisations

- Default settings for children’s accounts should default to the most privacy-protective option
- Age assurance and age-appropriate design should be considered before launching account types, not retrofitted later
- Contact information disclosure features need extra scrutiny when the user base includes minors
- Even the absence of a security breach does not exempt an organisation from privacy-by-design obligations

8. Comparison with India’s DPDP Act

The DPDP Act contains its own dedicated children’s data regime, and in some respects goes further than the GDPR: it defines a “child” as anyone under 18 (compared to the GDPR’s typical threshold of 16, subject to member state variation), requires verifiable parental consent for processing children’s data, and prohibits tracking, behavioural monitoring, and targeted advertising directed at children altogether (ITIF, 2026; Lexology, 2026). Non-compliance with children’s data obligations carries penalties of up to ₹200 crore under the Act (Atlas Systems, 2026).

9. Possible Implications for India’s Data Protection Board

Given that the DPDP Act already bans targeted advertising to children outright, the Board may take an even firmer starting position than the DPC did in this case, since there is no need to weigh legitimate interests or consent validity — the underlying commercial practice is simply prohibited by statute for anyone identified as a child. This suggests Indian regulators could place particular emphasis on age-verification mechanisms, since the practical difficulty of the Instagram case (knowing which users were minors) will likely resurface as a central issue in DPDP enforcement as well.

Comparative Table

Company	Year	Fine	Main Issue	GDPR Articles	Possible DPDP Equivalent
Meta Platforms Ireland	2023	€1.2 billion	Unlawful EU–US data transfers post-Schrems II	Art. 46(1), Chapter V	Section 16 (cross-border transfer notifications)
LinkedIn Ireland	2024	€310 million	Invalid lawful basis for behavioural advertising	Art. 6(1), 5(1)(a), 13–14	Sections on consent and “legitimate uses”
Instagram (Meta Platforms Ireland)	2022	€405 million	Children’s data exposure, public-by-default settings	Art. 6(1), 5(1)(c), 25	Children’s data provisions; verifiable parental consent

Emerging Enforcement Patterns

Looking across these three cases together, several recurring themes emerge. The first is transparency: in both the LinkedIn and Instagram cases, regulators found that users, including child users, were not given a clear, honest picture of how their data would be used. The second is consent quality: LinkedIn’s case shows that regulators scrutinise not just whether consent was obtained, but whether it was genuinely free, specific, and informed. Third, children’s privacy has emerged as its own distinct enforcement priority, treated with heightened seriousness because children are considered less able to understand risks to their data a theme that recurs strongly across DPC and EDPB decisions beyond just Instagram. Fourth, cross-border transfers remain one of the most legally unsettled and high-stakes areas of GDPR enforcement, with the Meta decision showing that contractual safeguards alone are not enough once a legal mechanism (like Privacy Shield) has been struck down by courts. Fifth, and perhaps most importantly, privacy by design and by default is treated as an enforceable obligation, not a best practice; a company’s default settings are themselves subject to legal scrutiny.

A pattern that stands out across all three cases is that none of them involved a traditional data breach or hack. Regulators imposed record-breaking fines purely for structural, ongoing processing practices that were embedded in each company's business model. This is a critical lesson: accountability under GDPR (and, by extension, under a GDPR-inspired regime like the DPDP Act) is not only about preventing unauthorised access to data, but about ensuring the authorised, everyday processing of data rests on a solid legal and design foundation. For India's Data Protection Board, this suggests that enforcement priorities may increasingly focus on structural practices, default settings, consent flows, and advertising models rather than waiting for breach notifications to trigger investigations. Given that the DPDP Act already imposes some of the strictest children's data rules globally and gives the Board broad investigatory powers, it seems plausible that children's data and consent validity could become early flashpoints for Indian enforcement, even before cross-border transfer issues mature into the kind of complex jurisprudence seen in the Meta case.

Conclusion

Working through these three cases has significantly deepened my understanding of what GDPR compliance actually requires in practice. The biggest lesson I take away is that compliance is not a static, one-time documentation exercise — it is an ongoing responsibility to align legal basis, transparency, and product design with evolving legal standards, as the Meta transfer case makes clear. I have also come to appreciate how much weight regulators place on default settings and consent quality, not just on preventing breaches, as shown by the Instagram and LinkedIn decisions respectively.

Studying GDPR enforcement has been valuable precisely because India's DPDP Act, while structurally different in places, particularly around cross-border transfers and the narrower set of lawful bases, shares the same underlying philosophy of accountability, transparency, and heightened protection for vulnerable groups like children. As India's enforcement framework matures under the Data Protection Board, I expect many of the same tensions between business models and privacy obligations to resurface, even if the specific legal mechanisms differ.

I come away from this project not as an expert, but as a student who now understands, in a much more concrete way, why these principles exist and how seriously regulators can treat their violation, and that is exactly the foundation I hope to build on as I continue toward becoming a Data Protection Officer.

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